

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Daniel D. Domenico**

Civil Action No. 1:20-cv-01194-DDD-MDB

HAMKIM INC., d/b/a Vista Inn,

Plaintiff,

v.

AMGUARD INSURANCE COMPANY, a/k/a Berkshire Hathaway Insurance
Companies, a/k/a Berkshire Hathaway Inc.,

Defendant.

FINAL JUDGMENT

This matter came before the Court and a jury of nine duly sworn to try the matter on May 1, 2023, United States District Judge Daniel D. Domenico presiding. On May 5, 2023, the jury returned its verdict.

In accordance with the orders filed during the pendency of this case, and pursuant to Federal Rule of Civil Procedure 58(a) and (b)(2), the following Final Judgment is entered.

It is ORDERED that judgment is entered in favor of Plaintiff HamKim, Inc. and against Defendant AmGUARD Insurance Company, in the total amount of \$3,600,000.00 plus reasonable attorney fees and court costs, which includes:

\$700,000.00 in actual damages on Plaintiff's claim of breach of contract;

pursuant to Colo. Rev. Stat. § 10-3-1116(1), \$1,400,000.00 plus reasonable attorney fees and court costs as actual damages on

Plaintiff's claim of unreasonable denial of benefits under Colo. Rev. Stat. § 10-3-1115;

pursuant to Colo. Rev. Stat. § 10-3-1116(4), \$0.00 in actual damages on Plaintiff's claim of bad-faith breach of insurance contract; and

pursuant to Colo. Rev. Stat. § 13-21-102(1)(a) and (3), \$1,500,000.00 in exemplary damages on Plaintiff's claim of bad-faith breach of insurance contract.

It is FURTHER ORDERED that post-judgment interest will accrue from the date of entry of judgment on the total amount of \$3,600,000.00 plus reasonable attorney fees and court costs at the legal rate pursuant to 28 U.S.C. § 1961.

It is FURTHER ORDERED that reasonable attorney fees and court costs will be awarded to Plaintiff upon the filing of a Bill of Costs and a motion for attorney fees within fourteen days of entry of judgment, in accordance with the procedures set forth in Federal Rule of Civil Procedure 54(d)(1) and (2) and Local Civil Rules 54.1 and 54.3.

DATED: May 18, 2023

FOR THE COURT:
Jeffrey P. Colwell, Clerk

/s/ Robert R. Keech

Robert R. Keech
Deputy Clerk

APPROVED AS TO FORM:

A handwritten signature in black ink, appearing to read 'Daniel D. Domenico', is written over a horizontal line.

Daniel D. Domenico
United States District Judge